

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JADE O'HALLORAN

Index No.

Plaintiff(s),

*-against-***Summons**THE CITY OF NEW YORK; NYPD DETECTIVE SOPHIA MASON; NYPD
OFFICER JOHN LATANZIO; NYPD OFFICER CHRISTOPHER
LEUFFGEN; NYPD CAPTAIN JULIO DELGADO; and NYPD MEMBERS
JOHN AND JANE DOES 1-10,

Date Index No. Purchased: January 31, 2022

Defendant(s).

To the above named Defendant(s)THE CITY OF NEW YORK; NYPD DETECTIVE SOPHIA MASON; NYPD OFFICER JOHN LATANZIO;
NYPD OFFICER CHRISTOPHER LEUFFGEN; NYPD CAPTAIN JULIO DELGADO; and NYPD MEMBERS
JOHN AND JANE DOES 1-10

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is a substantial part of the events & omissions giving rise to the claims were in NY Cty. which is , because inter alii Plaintiff's arrest took place in this county, making venue proper under CPLR 503(a).

Dated: Ridgewood (Queens), NY

January 31, 2022

Cohen&Green P.L.L.C.

by /s/ Remy Green

Remy Green

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SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X INDEX NO.:
JADE O'HALLORAN,

Plaintiff,

VERIFIED
COMPLAINT

-against-

THE CITY OF NEW YORK; NYPD DETECTIVE SOPHIA MASON; NYPD OFFICER JOHN LATANZIO; NYPD OFFICER CHRISTOPHER LEUFFGEN; NYPD CAPTAIN JULIO DELGADO; and NYPD MEMBERS JOHN AND JANE DOES 1-10,

PLAINTIFF
DEMANDS
A TRIAL BY JURY

Defendants.

-----X
Plaintiff, JADE O'HALLORAN, by her attorneys, COHEN&GREEN P.L.L.C. and

Gideon Orion Oliver, hereby complain of Defendants as follows:

PARTIES, VENUE AND JURISDICTION

1. At all times mentioned herein, Plaintiff, JADE O'HALLORAN (Ms. O'Halloran; she/her) was a resident of Kings County in the City and State of New York.

2. At all relevant times mentioned herein, Defendant, City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.

3. Defendant NYPD DETECTIVE SOPHIA MASON, was at all relevant times, the spokesperson for the Deputy Commissioner of Public Information, and upon information and belief, controlled the NYPD email account dcpi.dcpi@nypd.org.

4. Defendants NYPD MEMBERS JOHN AND JANE DOES 1-10, and upon information and belief, Defendant NYPD LT. JOHN LATANZIO,¹ are the officers that participated in Plaintiff's arrest. Plaintiff does not currently know the names of the Doe Defendants, but their names are known to the Defendants.

5. Defendant NYPD Officer Christopher Leuffgen, Shield No. 11502, Command Strategic Response Group 4 Queens, swore out a criminal court complaint against Plaintiff.

6. Defendants NYPD Captain Julio Delgado, Command Strategic Response Group 2; and NYPD Officer Carolina Arias, Shield No. 2027, Command Patrol Borough Midtown South are included in Defendant Leuffgen's criminal court complaint as sources of (false or misleading) information that Defendant Leuffgen forwarded to prosecutors. Upon information and belief they may be the Does that gave false information to Defendant Mason and the office of the DCPI.

7. Defendants are sued herein in their official and individual capacities.

8. Defendants are NYPD members who unlawfully used excessive force, arrested, and/or detained Plaintiff and others similarly situated in violation of their constitutional rights.

9. At all times hereinafter mentioned, the Defendants were employed by the City of New York as members of the NYPD. Some of their true names, as noted throughout this Complaint, are currently unknown to the Plaintiff.

10. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

¹ Defendant Latanzio is listed as Plaintiff's "arresting officer" in her Desk Appearance Ticket. However, during protests, NYPD has a long-standing policy and practice of "assigning" arresting officers to protesters who did not participate in their arrest.

11. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

12. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

13. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

14. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

15. At no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

16. Plaintiff timely served Notices of Claim on the municipal Defendant and complied with all conditions precedent to commencing an action under state law.

17. At least thirty days have elapsed since service of Plaintiff's Notice of Claim and adjustment and payment thereof has been neglected or refused.

18. Accounting for applicable tolls,² this action has been initiated within one year and ninety days of the accrual of Plaintiff's claims pursuant to New York State Law.

STATEMENT OF FACTS³

THE SUMMER 2020 PROTESTS IN SUPPORT OF BLACK LIVES

19. On May 25, 2020, police killed George Floyd. Almost immediately, protests against police violence and in support of police accountability and the Black Lives Matter movement spread across the United States and the world, including here in New York City where thousands exercised their constitutional rights to protest.

20. In the days and weeks following Floyd's killing, the New York City Police Department ("NYPD") engaged in activities that violated the constitutional rights of individuals who were protesting police misconduct, including, *inter alia*, corralling protestors into spaces where they could not escape, beating protestors with batons and fists, throwing protestors to the ground, using pepper spray indiscriminately, and ultimately arresting many of the protestors without lawful justification and without fair warning. Protestors were physically restrained with flex-cuffs in such a manner that caused them unnecessary pain and suffering and, in some cases, possible serious and long-term nerve damage. They were also subjected to lengthy and

² In the first weeks after COVID-19 became a global crisis, then-Governor Andrew Cuomo issued a series of executive orders, beginning with Exec. Ord. No. 202.8 ("EO 202.8") on March 20, 2020. EO 202.8 "tolled" "any specific time limit for the commencement, filing, or service of any legal action, notice, motion, or other process or proceeding" until April 19, 2020. In a series of other executive orders, ending with EO 202.67 (and confirmed in EO 202.72), the then-Governor extended the toll through November 3, 2020, such that the tolling period was "no longer in effect as of November 4, 2020." EO 202.72. The claims at issue here all arose during the period between March 20, 2020 and November 3, 2020, and therefore the statute of limitations clock did not begin running until November 4, 2020. Thus, the year and 90 day statute of limitations for Plaintiff's state law claims, which began running on November 4, 2020, expires on February 1, 2022. There may be other tolling as well, under doctrines like *American Pipe*.

³ Many of the allegations below are provided not as policies that specifically harmed Plaintiff, but as context for the harm he suffered. That is, the totally lawless atmosphere fostered by Defendants during the summer of 2020 and beyond, combined with the media pressure building because of Defendants' repeated, public, lawless assaults, led to a perceived need to change the media narrative — which in turn led to the intentionally false statements Defendants made about Plaintiff to the press and to the District Attorney.

unnecessary arrest processing that put them in dangerously close quarters, all at the height of the global COVID-19 pandemic.

21. The unlawful policies and practices used by Defendants against protestors included a crowd-control tactic known as “kettling” to corral and detain individuals who were engaged in peaceful protest. Defendants used kettling and similar tactics in order to impede constitutionally protected First Amendment activities, to conduct mass arrests without probable cause, and to deter those arrested and beaten, and others, from exercising their First Amendment rights in the future.

22. In addition, NYPD officers also targeted and arrested legal observers, medics, and other workers performing essential services without probable cause.

23. By contrast, these same Defendants have responded to other protests (including, in particular, “Blue Lives Matter” and other pro-police protests) without using the same tactics employed against those who protested police conduct during the racial justice protests of 2020.

24. The police actions in this case were part of overlapping policies and practices of the City of New York and the NYPD which were well known to Defendants New York City Mayor Bill de Blasio, New York City Police Commissioner Dermot Shea, and other City policymakers. These overlapping policies and practices include, *inter alia*, the use of excessive force, false arrests, and excessive and unreasonable detention at certain demonstrations—particularly those that focus on misconduct by the NYPD—but not others. These overlapping policies and practices have existed for years and have often resulted in litigation.

THE COVID-19 PANDEMIC IN NEW YORK CITY

25. As protestors were taking to the streets in the summer of 2020 to speak out against police brutality and in support of Black lives, the COVID-19 virus raged across the country.

26. In April 2020, Governor Cuomo ordered people to wear protective face masks in public, to protect themselves and others from the spread of the virus.

27. However, many police officers failed to abide by this directive to wear masks. As the AG Report documented, many officers who interacted with and arrested protesters in May and June of 2020 were not wearing face masks, even as the City continued to record hundreds of new coronavirus cases each week. By contrast, most protesters wore protective face masks—at least until their contacts with NYPD members.

28. During their arrests, some protesters masks fell off or were removed. These protesters were transported in vans and/or buses and placed in holding cells in close indoor contact with other arrestees whose masks fell off or were removed, and police officers who were not wearing masks.

OTHER DOCUMENTS AND FACTS PLAINTIFF INCORPORATES BY REFERENCE

29. Plaintiff incorporates by reference the facts contained in the reports that have been issued concerning Defendants' responses to the summer 2020 protests, including, *inter alia*, the report issued by the New York City Corporation Counsel and the report issued by the New York City Department of Investigation.⁴

30. Plaintiff incorporates by reference the factual allegations in other federal civil rights complaints in cases pending in the United States District Court for the Southern District of New York arising from Defendants' responses to the summer 2020 protests:

⁴ Margaret Garnett, Commissioner, New York City Department of Investigation, *Investigation into NYPD Response to the George Floyd Protests*, ("DOI Report"), Dec. 2020, available at <https://www1.nyc.gov/assets/doi/reports/pdf/2020/DOIRpt.NYPD%20Reponse.%20GeorgeFloyd%20Protests.12.18.2020.pdf>; New York City Law Department, *Corporation Counsel Report Pursuant to Executive Order 58 (June 20, 2020) Directing an Analysis of Factors Impacting the George Floyd Protests in New York City* (Dec. 2020) ("OCC Report"), <https://www1.nyc.gov/assets/law/downloads/pdf/ProtestReport-np.pdf>.

- a. *Sow et al v. City of New York et al*, 20-cv-00533(CM)(GWG);
 - b. *People of the State of New York v. City Of New York et al*, 21-cv-322 (CM)(GWG);
 - c. *Payne et al v. De Blasio et al*, 20-cv-8924 (CM)(GWG);
 - d. *Sierra et al v. City of New York et al*, 20-cv-10291 (CM)(GWG);
 - e. *Wood v. De Blasio et al*, 20-cv-10541 (CM)(GWG);
 - f. *Yates v. City of New York, et al.*, 21-cv-01904 (CM)(GWG);
 - g. *Campbell v. City of New York*, 21-cv-04056 (AJN); and
 - h. *Gray, et al., v. City of New York, et al.*, 21-cv-06610 (Unassigned).
31. Plaintiff incorporates by reference the factual allegations in other federal civil rights complaints in cases pending in the United States District Court for the Eastern District of New York arising from Defendants' responses to the summer 2020 protests:
- i. *Ezagui v. City of New York et al.*, 20-cv-06360 (DG)(SJB);
 - j. *Fraser v. City of New York et al.*, 20-cv-05741 (NGG)(MMH);
 - k. *Gelbard et al. v. City of New York et al*, 20-cv-03163(MKB)(RER);
 - l. *Jefferey et al. v. City of New York et al.*, 20-cv-02843 (NGG)(RML);
 - m. *Richardson and Myrie v. City of New York et al.*, 21-cv-03609 (LDH)(SJB);
 - n. *Smith v. City of New York et al.*, 21-cv-03096 (DG)(TAM); and
 - o. *Zayer v. City of New York et al.*, 20-cv-06070 (ARR)(PK).
32. Plaintiff also incorporates by reference the allegations in the amended complaint in *Calce v. City of New York*, 20-cv-8208(ER), pending in the United States District Court for the Southern District of New York, related to Defendants' unconstitutional enforcement of New York State's enjoined stun gun ban.

PLAINTIFF'S EXPERIENCE

33. On the night of September 4, 2020, Plaintiff was attending a protest in Manhattan.
34. Plaintiff was carrying two personal stun guns (purchasable on Amazon.com, and elsewhere) for her personal protection.
35. Plaintiff arrived at the protest at or around 6:00 p.m.
36. The protest involved a march, that lead through Washington Square Park, and eventually arrived at or around the corner of 23rd Street and Madison Avenue.
37. When the protest arrived at that location, police charged the group of protesters.
38. Plaintiff and others dispersed in response.
39. Plaintiff and her friends went briefly to Madison Square Park, then left the park to depart.
40. As they left the park, another group of police including John and Jane Does 1-10 — and upon information and belief, possibly including Defendants Latanzio, Arias, and Delgado — was on an adjacent corner.
41. That group of police shouted to stop, and then arrested Plaintiffs' friends.
42. Then, after a woman (who, upon information and belief, may have been an undercover police officer, Jane Doe 11, and may have been Defendant Arias in plain clothes, based upon the statement in the criminal complaint about who claims to have observed Plaintiff) shoved Plaintiff forward yelling, "she's one of them," the same larger group of police arrested Plaintiff.
43. At no point did Plaintiff engage in any graffiti or possess any graffiti instruments.
44. At no point did Plaintiff break any windows.
45. Plaintiff was arrested last among her friends.
46. At no point did anyone throw any smoke bombs near Plaintiff while she was being arrested.

47. At no point did any Defendant observe Plaintiff engaging in any illegal activity.

48. Because, as explained elsewhere, Defendants felt the need to develop a media counternarrative, at some point Defendants — including, upon information and belief, Defendant Mason — decided to use Plaintiff and others arrested with her as a target, without any care for the truth of the story.

49. Defendants invented from whole cloth “rioting” charges and that was the sole included in the DAT issued to Plaintiff.

50. Defendants then contacted media outlets, including the New York Post and New York Daily News, and offered a false story of what happened.

51. Shortly after the reporting, a New York Daily News reporter named Ellen Moynihan came to Plaintiff’s home and read on her smart phone from an email sent from, upon information and belief, Defendant Mason.

52. The reporter read from an email from NYPD, in sum and substance, “O’Halloran was caught breaking windows at the corner of [Ms. O’Halloran does not remember the corner specified]. Her friends threw smoke bombs and attempted to distract the police as O’Halloran was being arrested.”

53. That email led to reporting that was spread across the internet.

54. The initial New York Daily News story⁵ — that was repeated by many outlets — read:

One protester caught breaking windows, identified by police as 30-year-old Jade O’Halloran, had two Tasers on her, cops said.

Her friends were also cuffed when they hurled smoke bombs at cops taking O’Halloran

⁵ The New York Daily News later changed their reporting. However, outlets that copy and aggregate reporting had already copied it — and the original story is still live at: https://tribunecontentagency.com/tns_articles/8-arrested-in-manhattan-amid-protests-over-daniel-prudes-death/

into custody, authorities said.

55. Upon information and belief, the “cops said” and “authorities said” portions of the story reflect verbatim or near verbatim quotes of the email described above.

56. Defendants knew, or should have known, that those statements were false.

57. Defendants made the statements, not because of their truth, but in an attempt to change the media narrative, and to discredit the movement for police reform — the message being sent by the protest Plaintiff attended.

58. In other words, Defendants made these knowingly false statements as First Amendment retaliation.

59. The criminal court complaint sworn out by Defendant Leuffgen does not even allege sufficient facts, on its face, for the charge it levels.

60. The DA refused to charge riot or weapon possession.

61. Upon information and belief, the DA refused to charge riot because no officer was even willing to testify to fact sufficient to charge riot.

62. Upon information and belief, the DA refused to charge weapon possession because the stun gun ban is flatly unconstitutional.

63. Instead, the DA charged one count of “Possession Of Graffiti Instruments.”

64. But Defendants did not ever see Plaintiff in possession of graffiti instruments.

65. That is because Plaintiff was never *in* possession of graffiti instruments.

66. Nor did Defendants allege otherwise.

67. The Criminal Court complaint only alleges that Defendant Lantanzio “recovered a can of spray paint” from *a different protester*.

68. Defendants thus knowingly forwarded false, misleading, and facially insufficient

charges to the DA.

69. Further, Defendants illegally used group probable cause to arrest Plaintiff.

70. That is, Plaintiff was part of a group or perceived group, and was arrested without Defendants having made an individualized determination that there was probable cause to arrest the Plaintiff in question based on her own, individual conduct, as opposed to the perceived “group conduct.”

71. In fact, the criminal court complaint is explicit about this, making allegations almost exclusively about how “various members of the group were using spray cans and markers to write messages on this windows [sic] including, in sum and substance, ACAB, FTP, and Kill Cops” or how “members of this group were causing damage to the windows of various businesses.”

72. Despite that, and knowing they had not seen Plaintiff individually engaged in that conduct, Defendants both charged Plaintiff with crimes based on group conduct — and reported it to the media in retaliation for the message of the perceived group.

NYPD’S DELIBERATELY UNCONSTITUTIONAL ENFORCEMENT OF NEW YORK STATE’S ENJOINED STUN GUN BAN

73. The State Police are subject to an injunction, issued by Judge Hurd in the Northern District of New York, prohibiting enforcement of New York’s unconstitutional ban on personal stun guns. *See Avitabile v. Beach*, 368 F. Supp. 3d 404 (N.D.N.Y. 2019).

74. That decision faithfully applies a clear, on point Supreme Court decision: *Caetano v. Massachusetts*, 577 U.S. ___, 136 S. Ct. 1027 (2016) (per curiam) (Alito, J., concurring) (“While less popular than handguns, stun guns are widely owned and accepted as a legitimate means of self-defense across the country.”). *See also, Avitabile*, 368 F. Supp. 3d at 413 (“Accordingly, tasers and stun guns are protected by the Second Amendment.”).

75. Notwithstanding that clear authority, as set out in the complaint in *Calce*, NYPD

Commissioner Shea and the Defendant City continue to train officers that personal stun guns are illegal in New York City — and that anyone found with one should be arrested.

76. Plaintiff intends to continue carrying a personal stun gun.

77. If Defendants are not enjoined, Plaintiff will suffer irreparable harm because she is unable to exercise her Second Amendment rights.

NYPD’S RELATIONSHIP WITH VARIOUS MEDIA OUTLETS

78. Defendant City and Defendant Mason, along with the media department of the NYPD, are well aware of what happens when they give a story to either the New York Post or the New York Daily News about purported protester misconduct.

79. Both outlets are eager to smear protesters for political ends, and Defendants know this fact.

80. Further, Defendants know from extensive experience that both outlets will print anything Defendants tell them, without little if any further investigation.

81. Defendants are also well aware of the media ecosystem where such stories will be reprinted in similar outlets across the world (for example, the Daily Mail in the UK) — and repeated on message boards known for racism and harassment like “Law Enforcement Rant.”

82. Defendants intended for Plaintiff and other protesters to suffer reputationally and personally, and to be harassed, in order to deter them — and others who saw the harassment and media coverage — from engaging in First Amendment protected protest.

83. Indeed, the fact that these outlets often *later* print additions as happened here,⁶ where the protester denies the false statements at issue, only serves to increase the First

⁶ See <https://www.nydailynews.com/new-york/nyc-crime/ny-vandals-arrested-manhattan-daniel-prude-protest-20200905-mgpg2hfbpja3fl5cigg5sdffgy-story.html>; compare note 5, above.

Amendment chill — and further the NYPD media goal.

84. In sum and substance, Defendants have a policy and practice of using certain media outlets to attempt to deter constitutional conduct by making knowingly or recklessly false statements — or simply invented statements — and using them to drive Defendants’ preferred media narrative.

NYPD’S PERMISSIVE RESPONSE TO PRO-POLICE AND OTHER, SIMILAR DEMONSTRATIONS

85. The NYPD’s violent response to this protest against police brutality was dramatically different from their response to other kinds of protests and rallies.

86. On July 11, 2020, pro-police demonstrators held a “Rally to Back the Blue” in Dyker Heights, Brooklyn. Pro-police marchers yelled at and antagonized counter-protestors, making racist and sexist statements, grabbing them, and spitting in counter protestors’ faces. The NYPD made no arrests at the rally.⁷

87. On July 13, 2020, pro-police “Blue Lives Matter” groups held a march in Bay Ridge, Brooklyn. The march was attended by counter protestors organized against police brutality. Though members of the pro-police group shouted racist and homophobic slurs at the counter protesters and assaulted them in view of NYPD officers, only two people were arrested — both Black men protesting police brutality. By contrast, a Blue Lives Matter demonstrator who punched a woman in the face in view of NYPD officers was not arrested.⁸

⁷ Sydney Pereira, *Videos Show Pro-Police demonstrators in Brooklyn Unleashing Racist, Sexist Vitriol Against Counter-Protestors*, Gothamist, July 12, 2020, available at <https://gothamist.com/news/police-rally-back-the-blue-brooklyn-dyker-heights>.

⁸ Jake Offenhartz and Gwynne Hogan, *“They Defend Their Own Side”: NYPD Accused of Protecting Blue Lives Matter Marchers in Bay Ridge*, Gothamist, July 13, 2020, available at <https://gothamist.com/news/nypd-accused-protecting-violent-blue-lives-matter-marchers-bay-ridge>.

88. In October 2020, hundreds of members of the ultra-Orthodox Jewish community in Brooklyn gathered in Borough Park to protest coronavirus restrictions imposed by Governor Cuomo. The protestors set fires in the street and threw masks into the flames. They chased away NYC Sheriff's Deputies and attacked a photojournalist reporting on the protest. An ultra-Orthodox Jewish man who opposed the protestors was attacked by protestors and beaten with rocks. Police said that no arrests or summons were issued to the protestors on the night of the rally.⁹

89. On October 25, 2020, a group called Jews For Trump convoyed hundreds of cars draped with American flags and Trump 2020 banners. The caravan traveled from Coney Island to the Trump Tower in Manhattan before heading to a rally in a Brooklyn park. Despite engaging in acts of disorder during this caravan, this rolling group of pro-Trump agitators was allowed to continue unhindered by the NYPD.¹⁰

90. On November 1, 2020, a coalition of Trump supporters in a vehicle caravan were escorted through New York City despite blocking numerous bridges and committing acts of violence. One bystander attempted to photograph an obscured license plate of a vehicle in the caravan, but the driver of the vehicle drove into her and police threw her to the ground.¹¹

91. On December 2, 2020, hundreds gathered in Staten Island to demand the reopening of a bar that was closed for violating the health regulations related to COVID-19.

⁹ Jake Offenhartz, *Orthodox Borough Park Residents Burn Masks, Beat Dissenters Over COVID Lockdown*, Gothamist, Oct. 7, 2020, available at <https://gothamist.com/news/orthodox-borough-park-residents-burn-masks-beat-dissenters-over-covid-lockdown>.

¹⁰ AP, *Jews For Trump car parade stirs protests, fights across NYC*, Oct. 26, 2020, available at <https://abc7ny.com/jews-for-trump-times-square-protest-today-in-riot/7343862/>

¹¹ Jake Offenhartz, *Photos: Police Stand By As Caravans Of Trump Supporters Block Bridges*, Gothamist, Nov. 2, 2020, *Threaten Counter-Protesters*, available at <https://gothamist.com/news/photos-police-stand-caravan-trump-supporters-block-bridges-threaten-counter-protesters>

Protestors blocked traffic and hundreds gathered on the streets and sidewalks. Though NYPD deputies were stationed outside the bar, it was reported that no arrests or summons were issued.^{12, 13}

92. The NYPD has a history of treating even right-wing extremists more permissively. This pattern can be observed from the 1990s to the present.

- a. In the early 1990s the NYPD stood by and took no action when a group of skinheads attacked a group of peaceful demonstrators. *Dwares v. City of New York*, 985 F.2d 94 (2d Cir. 1993).
- b. In 1992, the Patrolmen's Benevolent Association, egged on by mayoral candidate Rudy Giuliani, held a demonstration at City Hall Park in response to Mayor Dinkins's call for a Civilian Complaint Review Board. This led to one of the biggest riots in New York City history. On-duty police officers who were present did little to stop it, and even encouraged it, despite the fact that the off-duty rioting officers blocked the Brooklyn Bridge, stormed City Hall, committed acts of vandalism, and assaulted bystanders.^{14, 15}
- c. More recently, the NYPD has turned a blind eye to violence committed by the Proud Boys and other neo-Nazi groups. In one such instance in October of 2018, a mob of uniformed Proud Boys and right-wing skinheads cried homophobic slurs and kicked and stomped a person laying on the sidewalk. NYPD officers observed the violence, but did not intervene to stop it. Instead, the NYPD was more concerned with controlling left-wing activists.¹⁶ During this incident three left wing activists were arrested but not a single Proud Boy was questioned or

¹² Wilson Wong, *Hundreds protest closing of Staten Island bar that refused Covid-19 measures*, NBC NEWS, Dec. 3, 2020, available at <https://www.nbcnews.com/news/us-news/hundreds-protest-closing-staten-island-bar-refused-covid-19-measures-n1249873>

¹³ NBC News 4, *Staten Island Bar Reopens, Defying City and State COVID Orders Once Again*, December 5, 2020, available at <https://www.nbcnewyork.com/news/coronavirus/staten-island-bar-reopens-defying-city-and-state-covid-orders-once-again/2762850/>

¹⁴ Nat Hentoff and Nick Hentoff, *Rudy's Racist Rants: An NYPD History Lesson*, Cato.org, July 14, 2016, available at <https://www.cato.org/commentary/rudys-racist-rants-nypd-history-lesson>

¹⁵ Pamela Oliver, *When the NYPD Rioted*, University of Wisconsin – Madison, July 18, 2020, available at <https://www.ssc.wisc.edu/soc/racepoliticsjustice/2020/07/18/when-the-nypd-rioted/>

¹⁶ Jake Offenhartz, *NYPD Accused Of 'Incredibly Deferential Treatment' Of Proud Boys Following Beatings Caught On Video*, available at, <https://gothamist.com/news/nypd-accused-of-incredibly-deferential-treatment-of-proud-boys-following-beatings-caught-on-video>

arrested. Proud Boy leader Gavin McInnes boasted about the incident that the group had support from “[t]ons of cops, I have a lot of support in the NYPD...”¹⁷

**DEFENDANTS’ POLICIES AND PRACTICES
REGARDING ARRESTS—INCLUDING MASS ARRESTS—WITHOUT FAIR
WARNING**

93. In some cases, Defendants seized protesters, including Plaintiff, based on the perception that they were part of a perceived group, without having made an individualized determination that there was probable cause to arrest the Plaintiff in question based on their own, individual conduct, as opposed to the perceived “group conduct.”

94. In some cases, Defendants failed to give constitutionally meaningful and adequate dispersal orders and meaningful opportunities to disperse prior to making arrests where such notice and opportunity were required.

95. That enforcement was consistent with official NYPD policy, practice, and/or custom.

96. Additionally, in some cases, Defendants enforced other provisions of New York law against Plaintiff and other perceived protesters without probable cause and/or without first having given constitutionally meaningful and adequate dispersal orders and meaningful opportunities to disperse prior to making such arrests.

97. In some cases, Defendants employed a crowd control tactic in which Defendants pushed and/or corralled and/or otherwise physically trapped perceived groups including Plaintiff and other perceived protesters, including by kettling, without first having given Plaintiff and the others so pushed and/or corralled and/or trapped meaningful notice and an opportunity to

¹⁷ Jake Offenhartz, *Proud Boys Leader: 'I Have A Lot Of Support In The NYPD'*, Gothamist, Oct. 15, 2018, <https://gothamist.com/news/proud-boys-leader-i-have-a-lot-of-support-in-the-nypd>

disperse or otherwise change their conduct in order to avoid being so pushed and/or corralled and/or trapped.

STATE AND CITY OFFICIAL REPORTS ON THE SUMMER 2020 PROTESTS

98. In July 2020, the New York State Office of the Attorney General (the “AG”) issued a preliminary report on the NYPD’s response to the May and June protests (“AG Report”).¹⁸

99. The AG Report found that most complaints received by the AG were allegations of excessive force, kettling, false arrests, and excessive force against protestors as well as similar misconduct directed at the press, National Lawyers Guild – New York City Chapter Legal Observers, elected officials, and essential workers.

100. The AG Report also found the pervasive failure of NYPD officers to wear protective face coverings to protect themselves and others against the spread of COVID-19.

101. In December of 2020, the NYC Department of Investigation issued a report examining the NYPD’s conduct in response to the 2020 Black Lives Matter protests (“DOI Report”).¹⁹

102. The DOI Report found, *inter alia*, that the NYPD lacked a sufficiently tailored strategy to respond to protests, used force and tactics of crowd control that led to excessive force

¹⁸ New York State Office of the Attorney General, *Preliminary Report on the New York City Police Department’s Response to the Demonstrations Following the Death of George Floyd*, (“AG Report”), July 2020, available at <https://ag.ny.gov/sites/default/files/2020-nypd-report.pdf>. The Plaintiffs herein incorporate by reference into this case the facts set forth in the AG Report.

¹⁹ Margaret Garnett, Commissioner, New York City Department of Investigation, *Investigation into NYPD Response to the George Floyd Protests*, (“DOI Report”), Dec. 2020, available at <https://www1.nyc.gov/assets/doi/reports/pdf/2020/DOIRpt.NYPD%20Reponse.%20GeorgeFloyd%20Protests.12.18.2020.pdf>.

and “heightened tensions,” made decisions based on intelligence that lacked “context or proportionality,” and deployed officers who lacked sufficient training in responding to protests.²⁰

103. In addition to noting the heavy-handed response by the SRG at the 2020 protests, the DOI Report found that officers not from SRG lacked “any recent training related to protests.”²¹

104. The DOI found that NYPD policies do not have specific First Amendment protest expression policing policies and failed to distinguish policies for serious civil disorders and riots from those applicable to peaceful First Amendment expression.

105. The DOI distinguished between protest facilitation and protest control, regulation, or suppression.

106. The former is preferred to allow for First Amendment expression, the DOI Report found, but the NYPD employed protest control during the 2020 protests.

107. According to the DOI Report, between May 28 and June 5, 2020, approximately 2,047 individuals were arrested during demonstrations.²²

108. The DOI also found that Black arrestees were disproportionately charged with felonies.²³

109. The DOI also found that “the force required to carry out a mass arrest was disproportionate to the identified threat,” and “placed the burden of potential crime on a wide swath of people who had no apparent connection to that potential criminal activity.”²⁴

²⁰ *Id.* at 36.

²¹ *Id.* at 61.

²² *Id.* at 26.

²³ *Id.* at 27.

²⁴ DOI Report at 56.

110. According to the DOI Report, between May 28 and June 20, 2020, the CCRB had received 1,646 protest-related allegations related to 248 incidents.²⁵

111. Defendant City and NYPD leadership and policymakers knew the department and its officers had problems with constitutionally policing protests but failed to adequately train and otherwise prepare its officers to respond to the 2020 protests, prevent its officers from committing the same acts of misconduct, or discipline officers who engaged in such misconduct.

FIRST CLAIM FOR RELIEF

Unlawful Seizure / False Arrest

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

112. Plaintiff incorporate by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

113. Defendants' seizure of the Plaintiff herein was done without any judicial warrant authorizing then to seize Plaintiff was unreasonable and was done without privilege or lawful justification.

114. Plaintiff did not consent and were conscious of their confinements by Defendants.

115. Defendants did not have individualized probable cause to seize, detain, or arrest Plaintiff.

116. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

²⁵ *Id.* at 28.

117. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF

Excessive Force

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

118. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

119. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

120. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

121. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRD CLAIM FOR RELIEF

First Amendment

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution

122. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

123. Defendants (a) imposed restrictions on such protected speech and/or conduct that violated Plaintiffs' First Amendment rights, including, but not limited to, in falsely arresting Plaintiff, in subjecting Plaintiff to excessive force, in selectively enforcing laws and regulations

against Plaintiff, in subjecting Plaintiff to Defendants' Protest Arrest Processing Policies, and in otherwise violating Plaintiff's rights and engaging in the acts and omissions complained of herein.

124. In addition to being retaliatory, the restrictions Plaintiff complains of herein, which Defendants imposed on Plaintiffs' First Amendment rights to participate in, observe, and/or stand nearby speech, conduct, association, and/or other expressive activities protected by the First Amendment on the streets, were themselves regulations on Plaintiff's protected conduct that:

- a. Were viewpoint discriminatory and/or otherwise not content-neutral, and were not necessary, and precisely tailored, to serve compelling governmental interests, and/or were not the least restrictive means readily available to serve those interests; or, alternately,
- b. Were content-neutral, but lacked narrow tailoring to serve a significant governmental interest, in that they burdened substantially more protected speech and/or conduct than necessary to serve those interests, and/or failed to provide ample alternatives for Plaintiffs' protected expression, including in that Plaintiffs' abilities to communicate effectively were threatened; and/or
- c. Afforded Defendants unbridled or otherwise inappropriately limited discretion to limit or deny Plaintiff's abilities to engage in protected conduct (also raising constitutionally significant Due Process-based vagueness and/or overbreadth concerns); and/or
- d. Amounted to the imposition of strict liability on Plaintiff for engaging in protected speech and/or expression.

125. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

126. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF

First Amendment Retaliation

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution

127. Defendants retaliated against Plaintiff for engaging in speech and/or conduct protected by the First Amendment.

128. Defendants engaged in the acts and omissions complained of herein in retaliation for Plaintiff's protected speech and/or conduct.

129. Defendants engaged in the acts and omissions complained of herein in order to prevent Plaintiff from continuing to engage in such protected speech and/or conduct.

130. Defendants engaged in the acts and omissions complained of herein in order to prevent and/or discourage Plaintiff from engaging in similar protected conduct in the future.

131. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who implemented them subjected Plaintiff to violations of their First Amendment rights.

132. Upon information and belief, Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment-based claims—including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline—with malice.

133. Upon information and belief, Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment retaliation claims—including the related municipal liability claims involving the adoption of policies, practices, and/or

customs and/or related failures to train, supervise, and/or discipline—in response to the perceived viewpoint and/or message expressed by Plaintiff.

134. Upon information and belief, Defendants did not subject other protesters expressing “Blue Lives Matter” or other, similar, pro-police messages who were similarly situated to Plaintiff in terms of their conduct and/or its potential public ramifications to the conduct, policies, practices, and/or customs complained of herein.

135. Additionally, some of the offenses charged against Plaintiff, which Defendants might argue provided probable cause for Plaintiff’s arrest, were offenses that Defendants typically exercise their discretion not to enforce, or not to make arrests in connection with.

136. Additionally, Defendants targeted Plaintiff for media smears, as detailed above, because they wanted to chill the message of protesters critical of police misconduct.

137. They did so without any account for whether there was cause of any kind to believe Plaintiff engaged in any of the conduct alleged to the press.

138. Plaintiff suffered actual chill, including in that Plaintiff was prevented and/or deterred from or impeded in participating in protected conduct on the date of and after the incident; and/or suffered adverse effects on their protected speech and/or conduct; and/or otherwise suffered some concrete harm(s).

139. Plaintiff suffered reputational harm and stress because of the personalized reporting targeting her.

140. Additionally, in many cases, Defendants apparently permitted, acquiesced in, and/or facilitated the speech and/or other expressive conduct in which Plaintiff was engaging, before suddenly using force and/or making arrests, without first having given reasonable notice

that such force and/or arrest activity would result if Plaintiff did not conduct themselves differently and/or disperse, as well as a meaningful opportunity to comply.

141. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in arresting and detaining Plaintiff subjected Plaintiff to the violations of their First Amendment rights described elsewhere herein.

142. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

143. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FIFTH CLAIM FOR RELIEF

Due Process

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fifth and Fourteenth Amendments to the United States Constitution

144. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

145. As described above, Defendants enforced offenses in a manner that rendered them constitutionally void for vagueness and/or overbroad, such that their enforcement against Plaintiff violated their Due Process rights, in that Defendants' enforcement in connection with those offenses failed to provide and/or reflected the absence of adequately clear standards to guide police officials' extremely broad discretion to arrest anyone at their whim, based on *ad hoc* determinations, often without fair warning.

146. Additionally, as discussed elsewhere herein, Defendants City, de Blasio, Shea, and/or Monahan designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing and/or retaining Plaintiff's property and/or detaining Plaintiff in the conditions as described subjected Plaintiff to the violations of their Due Process rights described elsewhere herein.

147. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

148. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SIXTH CLAIM FOR RELIEF

Equal Protection, Selective Enforcement, and Second Amendment

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fourteenth Amendment to the United States Constitution

149. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

150. As described above, in many cases, Defendants arrested Plaintiff for alleged offenses in connection with which C.P.L. § 150.20 required that Plaintiff receive summonses on the street in lieu of a fuller or lengthier detention; and/or in connection with which, under the NYPD policies and practices that are applied in non-protest contexts, arrestees are taken directly to a nearby local precinct, and released in an average of between around two and four hours with a summons.

151. However, because Defendants arrested Plaintiff and other arrestees in connection with a protest, Defendants subjected them to Defendants' Protest Arrest Processing Policies, rather than issuing them summonses, and releasing them from custody, on the street, while Defendants did not apply those same Protest Arrest Processing Policies to other similarly situated arrestees.

152. Additionally, as discussed elsewhere herein, Defendant City, designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in arresting and/or detaining and/or prosecuting Plaintiff subjected Plaintiff to the above-described violations of Plaintiff's Equal Protection rights.

153. Additionally, as discussed elsewhere herein, Defendant City, designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in arresting and/or detaining and/or prosecuting Plaintiff subjected Plaintiff to the above-described violations of Plaintiff's Second Amendment rights.

154. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

155. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

156. Because Plaintiff intends to continue to exercise her Second Amendment rights, she is entitled to an injunction against Defendants continuing to enforce the stun gun ban.

SEVENTH CLAIM FOR RELIEF

Deprivation of Fair Trial Rights

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution

157. Plaintiff incorporates by reference the allegations set forth in all preceding and subsequent paragraphs as if fully set forth herein.

158. Defendants fabricated evidence of a material nature, likely to influence a jury's decision, intentionally forwarded that evidence to prosecutors, as a result of which Plaintiff suffered liberty deprivations and other injuries.

159. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

160. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

EIGHTH CLAIM FOR RELIEF

Malicious Prosecution

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fourth and Fourteenth Amendments to the United States Constitution

161. Plaintiff incorporates by reference the allegations set forth in all preceding and subsequent paragraphs as if fully set forth herein.

162. Upon information and belief, Defendants misrepresented and falsified evidence to the prosecutor and/or failed to make a full statement of the relevant evidence – including potentially exculpatory evidence - to the prosecutor.

163. Defendants were directly and actively involved in the initiation or prosecution of criminal proceedings against Plaintiff, including by supplying and creating false information to

be included in NYPD paperwork that was included in NYPD paperwork, providing falsely sworn information in accusatory instruments, and/or providing false information to the prosecutor.

164. Defendants lacked probable cause to initiate and continue criminal proceedings against Plaintiff.

165. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

166. Notwithstanding Defendants' misconduct, the criminal proceedings against Plaintiff were favorably terminated on the merits.

167. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

168. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

NINTH CLAIM FOR RELIEF

Municipal Liability

Pursuant to 42 U.S.C. 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiff's Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution

169. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

170. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiffs to, including, but not limited to: uses of excessive force, and false arrests, and unreasonable restrictions on protesters' First Amendment-protected conduct, often without

fair warning; employing crowd control tactics such as pushing, corralling, encircling, or otherwise trapping protesters, without fair warning; engaging in retaliatory and selective enforcement of the criminal laws against perceived participants in First Amendment assemblies, particularly Black Lives Matter and/or anti-police brutality protests, in the absence of adequately clear standards to guide police officials' extremely broad discretion to arrest anyone at their whim, based on *ad hoc* determinations as to their perceived violations, without fair warning; using flex-cuffs for protest-related arrests, while failing to supply officers with protective padding and adequate numbers of cutting tools to loosen or remove flex-cuffs, and/or to ensure that such cutting tools are readily available when needed; failing to loosen or remove over-tight cuffs; and subjecting arrestees to lengthy detentions and lengthy detentions and arrest processing at centralized arrest processing locations, exposing them to searches, property seizures, and unhealthy and conditions of confinement, in lieu of brief street detentions.

171. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to: (a) formal policies, rules, and procedures of Defendant City; (b) actions and decisions by Defendant City's policymaking agents including, but not limited to, Defendant de Blasio, Defendant Shea, and Defendant Monahan; (c) customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant de Blasio, Defendant Shea, Defendant Monahan, and other policymaking officials; (d) Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train,

supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

TENTH CLAIM FOR RELIEF

Violations of New York State Law

Pursuant to the New York State Constitution and New York State Common Law

172. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

173. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

Violations of the New York State Constitution

174. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

175. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiffs' rights under those sections.

Assault and Battery

176. Defendants committed assault within the meaning of New York common law against Plaintiff by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

177. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiffs without Plaintiff's consent.

178. Defendants did thereby inflict assault and battery upon the Plaintiff.

Conversion

179. Defendants committed conversion by intentionally taking possession of and/or interfering with Plaintiff's personal property in derogation of Plaintiffs' rights, to wit, by taking without vouchering or returning her personal stun guns.

False Imprisonment and Unreasonable Detention

180. By the actions described above, the police officials described above did falsely arrest and/or imprison Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so. Plaintiff was conscious of the confinement and it was without their consent.

Negligent Training and Supervision

181. Upon information and belief, Defendant City supervised, and trained the police officials described above.

Excessive Detention

182. Defendants deliberately detained Plaintiff for excessive and unreasonably prolonged periods of time.

Malicious Prosecution

183. Defendants commenced criminal proceedings against Plaintiff maliciously and without probable cause.

184. All charges were terminated in Plaintiff's favor.

185. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering,

psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

186. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, Plaintiffs hereby demand a jury trial of all issues capable of being determined by a jury.

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;
- iii. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law; and
- iv. Such other relief as the Court deems just and proper.

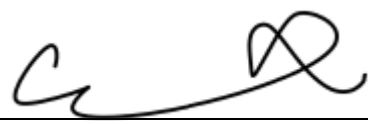
Dated: New York, New York
January 31, 2022

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ATTORNEY'S VERIFICATION

I, J. REMY GREEN, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiff does not reside in the County (Queens) where I maintain my offices.

Dated: Ridgewood (Queens), New York
January 31, 2022

/s/

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